

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 24-16

SAMSUNG ELECTRONICS AMERICA, INC.

v.

COSCO SHIPPING LINES CO., LTD.

v.

**SAMSUNG ELECTRONICS CO., LTD, SAMSUNG SDS ASIA PACIFIC PTE LTD.,
AND SAMSUNG ELECTRONICS LOGITECH CO., LTD.**

JOINT STATUS REPORT

Pursuant to the February 26, 2026 Order on the Fifth Extension and Modification of Discovery Schedule (“Order”) (Dkt. 104) Complainant Samsung Electronics America, Inc. (“SEA”) and Respondent COSCO Shipping Lines Co., Ltd. (“COSCO”) (collectively, the “Parties”), submit this Joint Status Report.¹

Outstanding Motions

SEA filed its Second Motion to Compel on April 7, 2026 (Dkt. 112), and COSCO filed its opposition on April 8, 2026.

COSCO filed its Motion to Voluntarily Dismiss its Counterclaim and Third-Party Complaint (Dkt. 114) on April 8. SEA and the Third-Party Respondents filed their responses on April 10 (Dkts. 115 and 116) and COSCO filed its Reply on April 13 (Dkt. 117). If the motion to voluntarily dismiss is granted, the motions to dismiss at Dkts. 43, 44, 58, 65, 72 & 84 would be moot.

¹ While this is a Joint submission, neither Party adopts the other’s portion of this filing.

List of all pending motions ripe for decision:

- SEA’s Motion to Dismiss Respondent’s Counterclaim (Dkt 43);
- Third-Party Respondents' Motion to Dismiss Respondent's Third-Party Complaint (Dkt 44);
- Samsung SDS Asia Pacific Pte. Ltd. s/h/a Samsung SDS Global SCL Asia Pacific Pte. Ltd.’s Motion to Dismiss Third-Party Complaint (Dkt, 58);
- Third-Party Respondent Samsung Electronics Co., Ltd. s/h/a Samsung Electronics Company, Ltd.'s Motion to Dismiss Third-Party Complaint (Dkt. 65);
- SDS America, Inc.’s Motion to Quash Subpoena (Dkt. 81);
- Third-Party Respondent Samsung Electronics Logitech Co., Ltd. s/h/a Samsung Electronics Logitech Company, Ltd.’s Motion to Dismiss Third-Party Complaint (Dkt. 84);
- Samsung SDS Asia Pacific Pte., Ltd.’s Motion to Quash Subpoena (Dkt. 89);
- SEA’s First Motion to Compel Discovery (Dkt. 95);
- COSCO’s Motion to Compel Discovery (Dkt. 103);
- SEA’s Second Motion to Compel Discovery (Dkt. 112); and
- COSCO’s Motion to Voluntarily Dismiss Counterclaim and Third-Party Complaint (Dkt. 114).

I. Complainant’s Report

With respect to the pending motions to dismiss COSCO’s counterclaim and third-party complaint, SEA concurs with the joint statement in the “Outstanding Motions” section above that the recently pending motion for voluntary dismissal of the counterclaim and the third-party complaint filed by COSCO would moot the pending motions to dismiss at Dkts. 43, 44, 58, 65, 72 & 84, *but only if the dismissals are with prejudice* and therefore fully and finally foreclose the

frivolous merits of the actions as addressed in the other pending motions to dismiss. COSCO waited until its reply brief to state that it demanded a without prejudice dismissal, having left the original motion intentionally opaque on the issue. Counsel simply added a “so ordered” line to a closing sentence stating, “[a]ccordingly, COSCO respectfully requests that the Presiding Officer dismiss COSCO’s counterclaim and third-party complaint.” This vague request would leave COSCO the opportunity to revisit seeking relief again anytime it wishes despite its withdrawal two years into the case. This is improper, and to the extent the Presiding Officer wishes to address the issue at oral argument SEA is prepared to address how a dismissal without prejudice would be wrongful.

Production of Documents and Related Issues

SEA’s document production has been principally complete since August 28, 2025. SEA is also making a final supplemental production this evening by the April 16, 2026 document production deadline, driven largely in response to issues that have only been raised in the past several weeks by COSCO.

SEA has Addressed COSCO’s Supplemental Discovery Requests

SEA’s supplemental production includes some additional documents relating to an SEA employee, Jeung Choi, that were first requested by COSCO on March 13, 2026. As SEA reiterated in the parties’ communications on the subject, documents that included Mr. Choi were searched and produced from relevant custodians during the course of SEA’s productions completed last August. While Mr. Choi was identified in SEA’s initial disclosures, he was not treated as a custodian because he began working at SEA in August 2022, and was hired for a new role involving the transition of SEA to CY moves, not for a role involving the store door moves at issue in SEA’s Complaint. Nevertheless, in an effort to avoid distraction and accommodate COSCO’s request, SEA agreed to collect, search for and produce any potentially responsive additional documents by the April 16, 2026 amended discovery cut off.

There is no pending dispute concerning Mr. Choi because SEA agreed to produce his information in the April 16, 2026 production. SEA is only forced to raise the issue in this report because COSCO decided to raise the issue, and so be it. It is the perfect example of the way the parties have conducted discovery. SEA raises major document discovery gaps in COSCO's belated productions and COSCO drags its feet, raises objections, deflects, requires motions to compel, and then produces documents in drip and drabs. COSCO raised an issue with Mr. Choi and SEA collected the data from SEA on March 31 and dutifully reviewed it in order to make today's document production deadline.

Last night, on April 15, 2026 at 6:15 p.m. EST, COSCO for the first time raised three new alleged discovery deficiencies. COSCO demanded SEA's immediate response (by today) in advance of the submission of this joint submission. The three alleged deficiencies relate to documents produced to COSCO many months ago that COSCO now says "appear" to indicate deficiencies, yet COSCO waited until the night before the close of document discovery to raise them with SEA. In SEA's view, this last-minute request is not timely and does not reflect a good-faith effort to resolve legitimate discovery issues.

Further, the most wide-ranging alleged "deficiency" is not a deficiency at all. COSCO now complains that virtually every native excel spreadsheet produced in SEA's production – approximately 80,000 in COSCO's count – are "not self-explanatory" and/or are "not fully explanatory on their face." The excel spreadsheets were produced in compliance with the parties' agreed upon EDI protocol (which COSCO does not contest). SEA is not required to further "explain" the content of documents produced, but COSCO is free to ask fact witnesses about documents should it choose to do so. Finally, in addition to not raising these alleged deficiencies with SEA until the last minute, COSCO did not move to compel SEA to supplement its responses on these three new assertions within the relevant discovery period.

COSCO's Document Production Remains Materially Deficient

COSCO's document production remains woefully inadequate, as set forth in greater detail in SEA's below-referenced and currently pending two motions to compel, and those deficiencies remain unresolved and continue to prejudice SEA. For example, on April 8, 2026, COSCO produced approximately 2,700 largely Chinese-language documents, together with extracted text files required by the parties' EDI protocol necessary to provide text for searching, and in this case, for translations. However, upon initial review, the text extraction was critically defective: it was not configured to properly recognize or convert Chinese characters, rendering the documents unsearchable and unusable for translation, review, or analysis. SEA raised this issue immediately upon receipt of the production. COSCO thereafter provided replacement text files; however, upon review, many of the replacement files continue to contain material errors and do not fully or accurately capture the underlying Chinese characters. As a result, SEA has been unable to meaningfully assess the contents of the April 8 production, causing significant and ongoing delays in review of the long-delayed Chinese documents, and to even evaluate the sufficiency of the documents finally produced. The deficiencies in COSCO's Chinese-language document production, combined with COSCO's delayed production of clearly relevant materials, including a limited volume of some policy documents produced only this week, have severely prejudiced SEA's ability to conduct a timely and meaningful review before the deposition phase.²

II. Respondent's Report

A. COSCO's Responses to SEA's Discovery Requests.

² Accordingly, SEA's review of COSCO's productions remains ongoing, and SEA expressly reserves all rights to seek further relief with respect to any additional deficiencies identified as the review continues and addressing how the prejudice impacts the deposition schedule until the documents are fully assessed.

COSCO has produced 1,046,361 pages of documents. On April 3, 2026, COSCO produced the documents from China (which were the subject of SEA's motion to compel (Dkt. 95)).³ COSCO made additional document productions on April 8, 13, 15 and 16.

B. SEA's Responses to COSCO's Discovery Requests

SEA's most recent production of documents was served on COSCO on August 28, 2025, and SEA's most recent responses to COSCO's interrogatories were served on October 16, 2025. SEA has not since supplemented its responses to such requests.

Jeung Choi documents. Upon COSCO's inquiry, SEA confirmed that it had not searched the custodial files of SEA employee Jeung Choi. SEA had identified Jeung Choi in its initial disclosures as a person likely to have discoverable information that SEA may use to support its claims or defenses. After the parties conferred, SEA agreed to produce by April 16 the responsive documents from Mr. Choi's custodial files. COSCO has not received those documents.

On April 15, COSCO wrote SEA and requested it to cure certain deficiencies in its production, including producing the Rail Storage Cost Attribution and Reason Study referred to in its production, all other studies of delay charges, and all documents relating to them, and all Daily Review Dashboards (Risk Analyses) which had not been produced. COSCO also requested that SEA explain which of the 80,000 Excel spreadsheets included in SEA's document production were responsive to COSCO's interrogatory requests. In addition, COSCO wrote that although SEA had contended that COSCO's interrogatories could be answered in whole or in part from the (unspecified) documents that SEA produced, the spreadsheets SEA produced were unintelligible,

³ COSCO is unaware of alleged unresolved problems that SEA alleges exist in the documents that COSCO produced from China, as it only heard of them through SEA's draft of this Joint Status Report of 9:07 p.m. this evening. COSCO is happy to discuss the matter with SEA. COSCO's review of SEA's productions remains ongoing, and COSCO expressly reserves all rights to seek further relief with respect to any additional deficiencies it may identify as the documents SEA has agreed that it will serve, but has not yet produced, are reviewed.

and SEA was required to answer the interrogatories.

Third-Party Discovery: Outstanding motions to quash. As noted above, the motions by Samsung SDS America, Inc. and its affiliate Samsung SDS Asia Pacific Pte Ltd. to quash COSCO's subpoena to each of them are *sub judice*. COSCO respectfully submits that documents sought by those subpoenas are crucial to its defense on SEA's claims and given the limited remaining time for fact discovery—including party and non-party depositions—that it will be prejudiced if it does not have the documents soon.⁴

COSCO's Motion to Voluntarily Dismiss its Counterclaim and Third-Party Complaint. SEA has chosen to use this Joint Status Report as a vehicle for an improper sur-reply to COSCO's motion to voluntarily dismiss its counterclaim and third-party complaint. COSCO moved to dismiss its complaint without prejudice—had it not done so SEA would not have demanded a dismissal with prejudice. SEA has provided no basis for a dismissal with prejudice and COSCO stands by its submissions.

⁴ The Korean authority has refused to serve subpoenas on SEA parent Samsung Electronics Co. Ltd., Samsung Electronics Logitech Co., Ltd., and Samsung SDS Co., Ltd.

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Respectfully Submitted,
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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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